

Ruchi Agrawal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 August 2014 · WRIT - C No. 42324 of 2014 · **Writ disposed of; petitioner to raise theft-assessment objections before the Executive Engineer under ESC 2005, to be decided in accordance with law within three months.**

HEADNOTE

Where a consumer had been subjected to a theft assessment but no final order had been passed, the Division Bench disposed of the writ leaving her to raise objections before the Executive Engineer under the Electricity Supply Code, 2005, to be considered and disposed of in accordance with law within three months of producing a certified copy.

FACTUAL SUMMARY

Ruchi Agrawal petitioned the Allahabad High Court after a theft assessment by the distribution licensee. Counsel was heard. The Division Bench recorded that no final orders had yet been passed. It did not examine the alleged theft or the quantum, and disposed of the writ leaving her to raise objections before the Executive Engineer (respondent no. 4) under the Electricity Supply Code, 2005, to be decided in accordance with law within three months of producing a certified copy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

theft-assessment-objections

HOLDING

A consumer subjected to a theft assessment on which no final order has been passed may raise objections before the Executive Engineer under the Electricity Supply Code, 2005; those objections are to be considered and disposed of in accordance with law. The writ was disposed of with a three-month outer limit from production of a certified copy. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Where a consumer had been subjected to a theft assessment but no final order had been passed, the Division Bench disposed of the writ leaving her to raise objections before the Executive Engineer under the Electricity Supply Code, 2005 ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT

No final assessment order had been passed; the Court did not examine the assessment and relegated the petitioner to objections before the Executive Engineer. ¶ 1